

ATTORNEY OR PARTY WITHOUT ATTORNEY: _____ STATE BAR NO.: _____ NAME: _____ FIRM NAME: _____ STREET ADDRESS: _____ CITY: _____ STATE: _____ ZIP CODE: _____ TELEPHONE NO.: _____ FAX NO.: _____ EMAIL ADDRESS: _____ ATTORNEY FOR (name): _____	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF _____ STREET ADDRESS: _____ MAILING ADDRESS: _____ CITY AND ZIP CODE: _____ BRANCH NAME: _____	
CASE NAME: _____	
ORDER FOR VICTIM RESTITUTION ☐ Original ☐ _____ Amended Order	CASE NUMBER: _____

Please read *Instructions: Order for Victim Restitution* (form CR-112/JV-792) for help with completing this form.

1. Choose a or b and provide the information requested.

- a. ☐ Criminal court proceeding

On (date): _____, defendant (name): _____
 was convicted of a crime that entitles the victim to restitution.

☐ Adult codefendants found jointly and severally liable (name each): _____

- b. ☐ Juvenile court proceeding (choose (1) or (2) and provide information requested):

(1) ☐ On (date): _____, child (name): _____ was found to
 be a person described in Welfare and Institutions Code section 602, which entitles the victim to restitution (*check all that apply*):

(A) ☐ Wardship is terminated.

(B) ☐ Parents or guardians are jointly and severally liable with the child for the amount in 3 (name each): _____

(C) ☐ Adult codefendants found jointly and severally liable (name each): _____

(D) ☐ The child is one of two or more co-offenders among whom liability is apportioned. The child is _____ percent responsible. The total amount of the child's liability is the amount in 3.

(E) ☐ The following are juvenile co-offender cases:

	Child's Initials	Case Number	County (if known)	% Apportionment (if known)
1.				
2.				
3.				
4.				
5.				
6.				

(2) ☐ On (date): _____, child (name): _____
 and their parents or guardians (name each): _____

agreed that the restitution order would remain in effect until paid in full and can be converted to a civil judgment as a term of informal supervision under Welfare and Institutions Code 654.2.

2. Evidence was presented that the victim named below suffered losses as a result of defendant's/child's conduct. Defendant/child was informed of the right to a judicial determination of the amount of restitution and

- a. ☐ a hearing was conducted.
 b. ☐ stipulated to the amount of restitution to be ordered.
 c. ☐ waived a hearing.

CASE NAME:	CASE NUMBER:
------------	--------------

3. **THE COURT ORDERS** defendant/child to pay restitution to

- a. ☐ the victim (*name*): _____ in the amount of: \$ _____
- b. ☐ the California Victim Compensation Board, to reimburse payments to the victim from the Restitution Fund, in the amount of: \$ _____
- c. ☐ plus interest at 10 percent per year from the date of ☐ loss **or** ☐ sentencing.
- d. ☐ plus attorney fees and collection costs in the sum of: \$ _____

4. The amount of restitution includes

- a. ☐ the value of property stolen or damaged.
- b. ☐ medical expenses.
- c. ☐ mental health counseling expenses.
- d. ☐ lost wages or profits
- (1) ☐ incurred by the victim due to injury.
 - (2) ☐ of the victim's parent(s) or guardian(s) (if victim is a child) incurred while caring for the injured child.
 - (3) ☐ incurred by the victim due to time spent as a witness or in assisting police or prosecution.
 - (4) ☐ of the victim's parent(s) or guardian(s) (if victim is a child) due to time spent as a witness or in assisting police or prosecution.
- e. ☐ noneconomic losses (felony violations of Pen. Code, §§ 288, 288.5, and 288.7 only).
- f. ☐ Other (*specify*): _____

Date: _____

JUDICIAL OFFICER

NOTICE TO VICTIMS

PENAL CODE SECTION 1214 PROVIDES THAT ONCE A DOLLAR AMOUNT OF RESTITUTION HAS BEEN ORDERED, THE ORDER IS THEN ENFORCEABLE AS IF IT WERE, AND IN THE SAME MANNER AS, A CIVIL JUDGMENT. ALTHOUGH THE CLERK OF THE COURT IS NOT ALLOWED TO GIVE LEGAL ADVICE, YOU ARE ENTITLED TO ALL RESOURCES AVAILABLE UNDER THE LAW TO OBTAIN OTHER INFORMATION TO ASSIST IN ENFORCING THE ORDER.

THIS ORDER DOES NOT EXPIRE UNDER PENAL CODE SECTION 1214(d).

YOU MUST FILE A SATISFACTION OF JUDGMENT WITH THE COURT WHEN THIS ORDER IS SATISFIED, AS REQUIRED BY PENAL CODE SECTION 1214(b).

YOU ARE ENTITLED TO A CERTIFIED COPY OF THIS ORDER UPON REQUEST, AS REQUIRED BY PENAL CODE SECTION 1214(b) AND WELFARE AND INSTITUTIONS CODE SECTION 730.7(c).

UNDER WELFARE AND INSTITUTIONS CODE SECTION 730.6(b)(3), YOU ARE ENTITLED TO RESTITUTION UP TO 100 PERCENT OF THE MONEY YOU LOST OR HAD TO SPEND AS A RESULT OF THE OFFENSE; IF LIABILITY FOR RESTITUTION IN JUVENILE COURT IS APPORTIONED, THE AGGREGATE AMOUNT FOR ALL CHILDREN INVOLVED CANNOT EXCEED 100 PERCENT.